

****10.07.2023****

****Judicial Decision – ANPC - WhatsApp****

In the ongoing litigation, the court of first instance (Bucharest Municipal Tribunal) upheld the report of the National Authority for the Supervision of Personal Data Processing, which established that ANPC collected numerous personal data from the complaints and notifications received through the "WhatsApp" application, which is not under its control, without taking into account the associated risks, thus violating the provisions of Article 32 paragraph (2) of the GDPR.

Thus, for the act established in 2022, the National Authority for the Supervision of Personal Data Processing imposed a warning sanction, based on Law no. 190/2018, accompanied by the corrective measure of processing personal data only through means of personal data processing that are under its control, including by implementing appropriate technical and organizational measures to guarantee and be able to demonstrate that the processing is carried out in accordance with the provisions of the GDPR.

The investigation was initiated following complaints alleging that ANPC decided to allocate mobile phone numbers for receiving notifications, although ANPC had other means of submitting petitions (email, online, on the website, mail). This information was also found in the press releases posted on the ANPC's website.

In light of the findings of the National Authority for the Supervision of Personal Data Processing, as contained in the control report, the court of first instance rejected the appeal filed by ANPC as unfounded.

In this context, regarding the compliance of processing operations with GDPR regulations by WhatsApp Ireland - this company was subjected to an investigation by the Data Protection Authority in Ireland, which found a violation of the transparency principle established by Article 5 paragraph (1) letter a) of the GDPR and, implicitly, of the right to information of data subjects located in the territory of several member states, resulting in a significant fine of 225 million Euros.

In light of the aforementioned aspects, the National Authority for the Supervision of Personal Data Processing draws attention to the fact that, in the context of personal data processing, using the messaging application "WhatsApp" as a means of processing, in relation to the principle of operator responsibility, processing in this manner may infringe upon the right to privacy and the protection of personal data of individuals, in relation to the processing principles established by Regulation (EU) 2016/679 (GDPR).